

CUPID AND THE LAW

A COLLECTION *of* SHORT STORIES

By RAE SOARES

HONOLULU:
THE HAWAIIAN GAZETTE CO., LTD.
1908

CUPID AND THE LAW

A COLLECTION *of* SHORT STORIES

By RAE SOARES

HONOLULU:
THE HAWAIIAN GAZETTE CO., LTD.
1908

The Project Gutenberg eBook of Cupid and the law

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Cupid and the law
a collection of short stories

Author: Rae Soares

Release date: August 9, 2024 [eBook #74214]

Language: English

Original publication: United States: The Hawaiian Gazette Co., Ltd., 1908

Other information and formats: www.gutenberg.org/ebooks/74214

Credits: Carol Brown, Peter Becker and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK CUPID AND
THE LAW ***

CUPID AND THE LAW

A COLLECTION *of* SHORT STORIES

By RAE SOARES

HONOLULU:
THE HAWAIIAN GAZETTE CO., LTD.
1908

TO
PROFESSOR M. M. SCOTT
AND THE
CLASS *of* 1908

COPYRIGHT, 1908, BY RAE SOARES

CONTENTS

	PAGE
A Deal in Opium	7
A Modern Evangeline	21
Cupid and The Law	35
The New Magnetic Healer	47
In the Valley of Teeth	57
The Raid at Punchbowl	67
A Change of Opinion	77
A Fatal Excursion	95

A DEAL IN OPIUM

A DEAL IN OPIUM



Of course, the people which participated in things of this sort are dead now, and so is nearly every one which ever knew anything about the matter, but occasionally you will run across an old Hawaiian whose memory you can always refresh by showing him a bit of silver, and then you will hear tales of the days when smuggling opium into Honolulu was a common practise.

There are some who will tell you that the blocks on the sidewalk on the right hand side of Alakea street were taken from the holds of smugglers. Nothing so very astonishing, only, in the middle of these blocks the initiated found a can of opium. Parties would contract for a load of Chinese stone and the unsuspecting Customs man would pass the ship which brought it. But when the stones were safely carried away, this same Customs man would have been astonished, could he have seen a man remove a layer from a block and take out from the cavity a can. He would have been further astounded could he have seen what the can contained.

Ah Pung had contracted for such a load of stone and was anxiously awaiting the arrival of the ship bearing it.

Smuggling opium was getting to be a risky proposition and in view of the alarming number of captures which the government had made and the large amount of fines which it had collected from those whom it captured, Ah Pung made a mental resolve, as he walked down to the Pilot House to ask if the *Fanny* had been sighted, that with the sale of this load, his part in this illegal business terminated.

The *Fanny* was making an unusually slow passage, and many were the conjectures placed upon her delay.

“Bet you she’s got a load of opium this trip,” said one old sea dog to a group of his companions.

“Your bet is safe,” was the reply from the youngest of the number, “she had a load of it last trip. My opinion on her delay is this: Her captain’s got the wind that somethin’ is blowing wrong and he’s not going to risk his cargo and his ship by coming in, unless the coast is clear.

“Old Captain Mitchell is too crafty a sea dog to be caught napping. He’s been engaged in this smuggling business for over twenty years. Used to smuggle wines from Portugal into Boston Harbor at one time, and then, when he found the job getting pretty hot, he took his ship when no body was looking, and went into smuggling opium. I was first mate under him two trips ago, and I know.

“I’ll bet you,” he said suddenly to the first speaker, “I’ll bet you that this old Chink has got the cargo on board the *Fanny* this time.”

The group fixed its eyes on Ah Pung who was nervously watching a customs officer who, from time to time, was scanning the horizon with his glass.

Hearing what the mate said, Ah Pung turned to them and said, “Yes, me got calgo on boad the *Flanny*. Too muchee building stone this trip. Got big contlact make floo’ for lice thleshing, up Waiau.”

A number of the sailors nodded as if they accepted the Chinaman’s story, but the mate smiled. “That’s all right, John; don’t need to worry about us, you pig-tailed heathen. I know very well what’s inside them stones, but if you can land them without that chap nabbing you, you’ll have my sincerest admiration. I tell you,” he said lowering his voice, “you’d better get some kind of a signal out to the *Fanny* telling her not to land those stones at the wharf.”

The Chinaman looked the mate over carefully and then, as if satisfied with his examination, he said, “My lice schooner captain he sick. You number one sailor; you take my boat to Waiau now.”

Roberts understood the ruse and got up smilingly from his box and went over to Ah Pung’s rice schooner. The sails were hoisted and the little schooner bounded out of the harbor. Instead of turning to his right, to where Waiau lay, Roberts steered the schooner in the direction of Diamond Head.

In response to the Chinaman’s inquiring look Roberts said, “That government schooner is out somewhere. We’ll have to find out where

before we can do anything.”

The schooner was skimming along at a good clip when Ah Pung’s excited eyes saw another schooner bearing down upon them.

“No,” Roberts said after looking the new comer over, “that’s not the *Fanny*; that’s the customs’ schooner. Well, we’ll make for Waiau.”

Carefully swinging her around, he started back to town but was hailed with the cry, “Ship ahoy!”

“The *Moi Wahine*,” was the reply.

“Haul hard until we come up to you,” was the order.

Roberts had the one sailor on board haul down the sails and awaited the coming of the customs boat.

“What are you doing?” he was asked.

“Merely trying this boat.”

“What for?”

“Want to buy her.”

“What made you turn around when you saw us?”

“Didn’t see you until after I had started to come back.”

The officer seemed appeased and he ordered his own sail up. Roberts followed suit and turning to the captain he said, “I’ll race you back to the harbor for a drink all around.”

“That’s to find out who has the faster boat,” he muttered to himself.

“All right, let her go,” he shouted and both boats fairly flew, cutting the water with clean, sharp strokes as they sped along.

Roberts put on all the sail he had; the customs man did the same and gained rapidly.

“Whew,” muttered Roberts, “not much of a chance for us, Ah Pung, if we were in a pinch now. But wait a moment, I’ll fix him.” He veered slightly to the left and took advantage of a sudden puff of wind. That was all the *Moi Wahine* needed; her masts fairly groaned under the spread of canvas and soon the customs man was out of sight.

“I understand her now,” Roberts said, “I’ll guarantee to beat anything in these waters. But let’s go to Waiau. I want to see what kind of a harbor they have there.”

“Nothing decent,” was his verdict. “Catch us here easy. I have it,” he said finally, “there’s Ford’s Island off there,” jerking his thumb in the direction of the island, “that’ll help us alright. Now let’s go back to the harbor and get those drinks the captain owes us.”

The captain was found pouring a drink from a demijohn in his office. “It’s on me,” he called as Roberts passed by. He entered and took the mug which the captain filled for him.

“By the way,” he asked, “what were you doing out by Diamond Head this afternoon?”

“Looking for the *Fanny*. I can’t imagine what’s become of the boat.”

“What’s so wonderful on the *Fanny* that makes you so anxious to meet her?”

“Opium.”

“What do you intend to do?”

“Do? Nothing now. Wait until she gets into the harbor and then nab the man that her cargo is assigned to.”

“But supposing he manages to land the cargo before the boat reaches the harbor, then what?”

“Take a mighty smart man to skin me, old fellow. Fill up your mug, I see it’s empty.”

“Here’s to the *Fanny*; may she make port safely.”

The captain looked at Roberts in mild surprise but he drank the toast and added, “May she make port safely and give her cargo up to the government.”

Roberts left the room and found Ah Pung waiting for him.

“You come my house eat,” he said.

The invitation was accepted and Roberts was soon at Ah Pung's home. It was a pretentious dwelling, for Ah Pung had money. He had married a Hawaiian woman who possessed a large quantity of land. A part of this her husband had sold to enable him to buy opium, and after the second trip, he was counted a rich man.

Ah Pung had a daughter. Though dark-skinned, Kealoha was fair to behold. She had inherited her mother's Hawaiian beauty, and her only Chinese characteristic shown from her eyes.

Sam Roberts was a roving sort of a fellow. Many were the girls who would have gladly married him "back East," but he would have none of them. Tonight, as he sat on the floor, which formed Ah Pung's dining table, by the side of pretty Kealoha, he thought he had never seen any Hawaiian or any other maiden look so lovely.

Around her head she had a *lei* of red carnations, and another of *ilima* hung around her neck. Lost in the contemplation of so lovely a vision, Roberts failed to do justice to the excellent meal which Ah Pung had provided.

When dinner was over, Ah Pung led his guest out to the lanai and together they planned their campaign.

"You help me, I help you," said Ah Pung.

"Yes, I help you, but what do I get out of this business?"

Ah Pung had noticed the effect which Kealoha had produced upon Roberts and with a crafty smile he answered, "You help me, make me win, I give you Kealoha."

"But suppose she won't have me?"

"Kealoha have anybody I tell her have," was the Chinaman's response.

"The stake is well worth the risk," Roberts muttered. "I make the old Chink win."

Kealoha came out with her guitar and in the short twilight, she sang several plaintive Hawaiian melodies. Then she suddenly arose and went into the house.

Roberts got up from his chair and said, "Let's go out to Diamond Head. I have an idea that the *Fanny* is somewhere around there."

They went to the wharf and rousing the sailor aboard the *Moi Wahine*, the sails were raised and in the calm moonlight they sped away to Diamond Head. When they were in full sight of the light house, Roberts saw a green light flash out over the water from a large black mass which was blacker than the darkness around it. The green light was followed by two red ones, and then by a white one. Roberts returned the signal and sailed for the spot.

"Ship ahoy!" he called softly.

"The *Fanny*" was the response. "Who are you?"

"The *Moi Wahine*. Don't attempt to land at Honolulu. Customs' men are on to you. They were looking for you yesterday."

The *Fanny*'s captain laughed. "What would you advise, Roberts?"

"Go to Pearl Harbor instead. Nobody has seen you. The old fellow up there is asleep and we can get up to Pearl Harbor with this wind before daybreak. Once there, you can remain in hiding 'til night. Then I'll come and transfer your cargo into the *Moi Wahine*."

Capt. Mitchell favored the plan and with the *Moi Wahine* in the lead, the two schooners sailed to Pearl Harbor, where the *Fanny* was anchored. The *Moi Wahine* was sailed back to town and moored at her usual place.

"Nobody will be the wiser, old chap," he said to Ah Pung. "We'll stay at home today and tonight the opium will be brought back. Let the stones stay in the hold until the next night, then we'll bring them to your house, a few at a time. Then, Ah Pung, I'll claim my reward."

Ah Pung nodded and invited Sam in to spend the day at his house.

After breakfast he followed Kealoha into the yard, and watched her make a *lei*.

They were silent for a while when Kealoha asked, "You'll help my father land his opium?"

"Yes," he replied.

"How much money will you get for the job?"

“No money at all; my dear, I get *you*.”

“You get me?”

“Yes, your father has promised to let me marry you if I succeed in landing the opium so that the customs men won’t know.”

“Can you do it?”

“Dead easy.”

“But if I don’t want to marry you?”

“But you will,” he said smilingly.

“But I won’t,” she returned firmly. “Do you think I sell myself or let my father sell me for a load of opium. No, sir! What’s more, I am to marry Kea.”

“Don’t you love your father?”

“Yes, very much.”

“Then do you want to see him go to jail?”

“No.”

“Well, if I say the word, I’ll get him into jail.”

Kealoha burst into tears. “You white men are so cruel,” she sobbed out in Hawaiian. “Not content with defrauding us out of our lands, you wish to keep us from marrying one another.”

Roberts bit his lips. He disliked to see woman in tears. He took her hands in his and said gently, “Kealoha, listen to me.”

She raised her head and with brimming eyes looked him full in the face.

“Kealoha,” he said, “couldn’t you learn to love me?”

She shook her head.

“Do you love Kea?”

“Yes,” she said softly.

“Then, Kealoha, I am not the man to cross the love path of another man.” He was silent for a moment then he continued: “I love you as I have

never loved before. You say you love your father. For your sake, dear heart, I'll not betray him. Go, tell your father that I have given my permission for you to marry Kea tonight. Go."

Kealoha threw her head upon his shoulder and sobbed out her thanks. Then raising her pretty face to his, she pressed a kiss on his lips and left him to himself.

**A MODERN
EVANGELINE**

A MODERN EVANGELINE

T

HE sun was sinking behind the purple hills in a little village in Madeira as a tall, swarthy Portuguese hurried to his little home.

“Ah, Manuel,” he cried as an older man came out of a little side street, “have you heard the latest bit of news?”

“*Não*, Gabriel, what is it?”

“A man from the Sandwich Islands has come here, offering to give us free passage to Honolulu provided we work for three years on the sugar plantations. He promises us twenty-two dollars a month together with a house and free water. I, for one, intend to go. Twenty-two dollars a month! Why, fourteen is all I can make here, working from early morning ’til late at night. What say you; will you be one of the company?”

“That I will. I have a brother there and my wife has a sister. We shall tell the man that we will go to his plantations, and then when we get to the capital, I march up to my brother’s, while the rest of you can go and till the soil. I am a carpenter, and none of that dirty work for me. A free trip! ha, ha, ha; I’ll beat the American at his own game.”

“I do not consider that fair,” was Gabriel’s response. “The American expects us to keep our word. Furthermore, he is offering a reduced passage rate to those who want to pay their way.”

“That won’t do for me. Why, even at the smallest possible rate, it would be an utter impossibility for me to take one child, let alone fourteen!”

Gabriel laughed. “Well, I am going to those islands, but it is to work on a plantation. Three years is but a short while, when you stop to consider it, and by the end of that time, I will have saved enough to get married on.”

“Do as you want to, boy, but I tell you frankly that you are a fool. You are an excellent mason; why throw away the gift which the blessed virgin

gave you, to kill yourself on an old plantation for the sake of sentiment. It is expected that there will be some that will take advantage of this free trip idea, and you may as well be one of those as not. But we'll not quarrel over the matter."

They walked on in silence for some moments until they came to a neatly white-washed cottage. There were vines over the front and in the little garden in the back, neat garlic patches shared the space with cabbages.

"Will you come in?" Manuel asked.

"No, I have much to do yet tonight. The ship leaves in two or three days and I must leave my affairs in something like decency. *Boa noite*."

"*Boa noite*, Gabriel, come over tomorrow and let us make our plans."

"All right," and Gabriel continued on his way, while Manuel turned into the cottage. He was met at the door by his daughter, Maria da Cruzs. He had eight daughters and all eight were named Maria—of something or other. Of course they all had middle names and occasionally they were called by their middle names to avoid confusion.

"Who was that you were just speaking to," she asked him.

"What! Did you fail to recognize the voice? It was that of your own Gabriel."

Maria da Cruzs blushed violently as she said, "He is not my Gabriel."

Her father laughed at his daughter's discomfiture and added teasingly, "He leaves for the Sandwich Islands very soon."

"For the Sandwich Islands? Why, they are so many, many miles away. Has he enough money to pay his passage?"

"No; an American has arrived offering us free passage to Honolulu, provided we promise to work on the sugar plantations for three years."

"Oh, father! Let us go."

"I thought it was but yesterday that you said nothing could induce you to leave Madeira."

"Yes," she said slowly, "but—"

“But you didn’t know then that Gabriel was going away,” her father supplied. “Well, I have almost decided to go myself, but not to work on an old plantation, mind you. I am a carpenter, and none of your dirty work on a field for me.”

While they talked, Gabriel appeared in the doorway.

“I came back to tell you,” he said, after he had greeted Maria, “that if you decide to go, you must send in your names tomorrow. The man has been here for some time but in this out of the way place, news travels slowly, so that I but heard it yesterday when I went to Senhor Marques’ house to repair his wall, which fell in the last wind storm.”

“Yes, I believe I shall send in my name tomorrow,” said Manuel slowly, rising from his comfortable position on the floor and going out to the kitchen where his wife was preparing the dinner for her hungry family, leaving Gabriel and Maria da Cruzs together.

“Ah, Maria,” he said, “to think that we shall soon be able to get married. In that blessed paradise, I can surely make enough money to support both of us. Then, too, our house will be free of rent; and that is quite a saving.”

Maria was silent, but Gabriel could read in her silence that she, too, was pleased with the prospect which he was painting.

“Had we better get married before the boat sails, or shall we wait until we get to Honolulu?” he asked.

“Oh, let us wait until we get to the Islands, and then we can tell better what lies before us.”

“Let it be as you say,” Gabriel responded, inwardly well pleased that Maria was as enthusiastic about the islands as he was.

“I must go now,” he said finally, “but I shall see you again in the morning. *Boa noite minha querida*,” and he disappeared into the darkness.

II.

The next morning, Manuel rose earlier than his usual early hour, and waited for Gabriel.

“Ah, my boy,” he said walking toward the road as Gabriel finally made an appearance, “if you are as slow as that on the plantation, your boss will hurry you up with his big black whip.”

“The bosses do not use whips any more,” Gabriel responded.

“They do not? How do you know?”

“The American said so.”

“The American lies. I have a brother there who went over with the first lot of Portuguese, which left on the *Priscilla* nearly twenty-five years ago, to Honolulu. The tales which he used to tell me, when he came back, of how the bosses, lunas, they call them there, used to treat them, would simply scare you. No, sir, no plantations for me, sir; and if you knew what I know, you would say the same thing.”

“Yes, I know what you know; how the lunas used to take up the hoes which the men were using, and bang them on the head with the handles just because they felt like it. I know, too, that they used to tie the men up to the fence and whip them with their snake whips just because the men were a trifle slow, and I know, too, that things have changed within the last years. With the coming of Annexation, the plantation laborer does not suffer what he used to, so to the plantations for me.”

“Well, I am sure you have my permission, but let us hurry; the sun is getting quite high and we have a number of miles to go yet.”

They quickened their pace and were soon in town where they found a crowd of men and women gathered around a large building.

“That is where the American has his office,” said Gabriel, “he is now receiving the names of those who want to go. Come, let us enter.”

They walked in together and awaited their turn to book.

“Your name,” asked the clerk finally of Manuel.

“Manuel Gomes da Silva.”

“How many children have you?”

“*Quartorze*.”

“How many is that?” asked the “Americano.”

“Fourteen.”

“Fourteen! Good! That means fourteen families some day to make their homes in Hawaii. Fourteen different families to work on the plantations. Good!”

Manuel did not understand what the American was saying, but he made a very good guess and smiled knowingly at Gabriel as he walked up to the registrar.

“Married or single?” he was asked.

“Single. I intend to marry Manuel’s eldest daughter as soon as we get in Honolulu.”

His remark was translated to the American, who rubbed his hands gleefully. “Better and better,” he said. “There goes a man who will make Hawaii his permanent home. In years to come he will be able to vote and for all we know, some of his children may serve in our legislature.”

The interpreter laughed. The idea of a son of a plantation hand being a Senator or even a Representative appeared ludicrous to him, and he said so.

“It has been done before,” he was told, “so why can’t it be done again.”

“Done before?” asked the interpreter, “do you mean to tell me that any of your public men have had parents who worked on the plantations?”

“Sure,” was the response.

The interpreter shook his head. “It is unheard of here.”

“Here, yes; but in America and in Hawaii, no. Our school system accounts for that—but here comes another man.”

All day the men booked, and when night came, word was given to get ready immediately as the boat sailed in three days.

Manuel and Gabriel stayed in town that night and were taken to the wharf to see the *Suveric*, the boat which was to take them to the Paradise of the Pacific.

The remaining days were ones of excitement and bustle. For the two friends, however, there was not much to do. No furniture was brought as they could get furniture cheaply in Honolulu.

“I am going to look at the old house once more before I go,” said Gabriel on the day the ship was to leave.

“Better not,” advised Manuel; “you might miss the boat.”

“There is no danger of that. The boat sails at five this evening and it is now three in the morning. All of my things are on board, so I shall have nothing to do when I come back.”

“Oh, don’t go,” said Maria; “the ship might go earlier than they say, and what would I do without you!”

“Don’t worry,” he said, “I want to put some fresh flowers on my parents’ graves, before I leave this island, never to return.”

She respected his sentiment and let him go without a murmur, but not without misgivings on both her and her father’s part.

“If he misses this boat, it will be a terrible thing for him. All his clothes are aboard and I have his money in my note,” Manuel said.

“Oh, he will have time to go and return,” spoke up João Mello, who was Gabriel’s friend. “Gabriel is a fast walker and could go much further than that in the same time.”

“It isn’t that,” returned Maria, “suppose the boat should leave earlier than we were told it would?”

“I hadn’t thought of that. If I had,” he added thoughtfully, “I wouldn’t have let him go. But let us hope for the best,” he added cheerfully, seeing that Maria was about to cry.

III.

“Captain,” said the first mate of the *Suveric* to his superior officer a few hours later, “the tide is going out. Hadn’t we better take advantage of it, and leave this morning instead of tonight?”

“What do you say?” asked the captain of the *Americano*.

“Well, the people are all here, so I don’t see any objection to sailing now, if you want to. I’ll pass along the word. Here, Francisco, tell these people to

get on board. We leave pretty soon.”

“Pretty soon?” cried Maria as she heard the order, “why, Gabriel will not be here until night. Oh, why did I let him go!” And the unhappy girl indulged her grief in shrieks of the most heart-rending nature.

“Oh, never mind,” said the *Americano*, when he heard the reason for her shrieks. “He can come later. She will have learned some English words by that time, and will have an advantage over him in that she will be able to teach him what she knows.”

But Maria was inconsolable. “I want my Gabriel,” she moaned; “*Ou meu Gabriel*.”

But crying and wishing for him did not bring Gabriel to her, and the long, hard voyage to Honolulu was endured without him.

True to the plans which he had made in Madeira, Manuel did not go on a plantation, but remained in the city, where he soon obtained employment at a much better wage than he had been accustomed.

Maria was fairly good looking, and the young men of Honolulu were not slow in finding that fact out, and many a suitor she had had before she was in town many months. But she met them all with the same answer, “I am waiting for Gabriel.”

One day, news arrived that the *Kumeric*, with another load of Portuguese, was coming, and Maria was overjoyed.

“My Gabriel will surely come,” she told her father.

“Your Gabriel?” he replied, “why, when you were in Madeira, you said that he was *not* your Gabriel.”

“That was in Madeira,” she said.

While they talked on the subject one morning, three loud blasts from a whistle interrupted their conversation, and soon they heard that the *Kumeric* had been sighted.

“Oh, let us hurry to the wharf,” Maria said.

“No hurry at all. It will take her two hours to come in, so we will have plenty of time.”

But Maria was impatient and finally persuaded her father to “go immediately.”

The wait was long, but finally the vessel was tied to the wharf. No one was allowed aboard her, and no one was allowed to leave her, so those on the wharf had to content themselves with picking out from the mass of humanity huddled along the side of the ship, faces which they recognized.

Maria peered anxiously at the people on board, but she saw no Gabriel.

Disappointed, she was almost ready to give up and go home, when her attention was attracted by a tall man violently waving his cap at her.

It was Gabriel, and with a cry of delight, she rushed up closer to the side of the ship.

“*Maria minha,*” Gabriel shouted.

“Good morning my dear,” she replied in English.

CUPID AND THE LAW

CUPID AND THE LAW

T

HERE has been great rejoicing in the little village of Hingyan, when Ito and Hatsu were married. Ito had money, and he spent it lavishly on his feast. No one could honestly say that the host had been niggardly with his sweetmeats or that there had not been enough sake to go around. On the contrary, the villagers declared that never before had they attended such a sumptuous feast.

Ito was a rice planter. He owned the largest rice plantation in the village and had the largest stock of buffaloes in the entire district. But one day he did not come to his noonday meal, and when he arrived at evening he seemed very much depressed in spirit.

“What is troubling my beloved one?” asked his wife, who had never, since she had been married, sat down to such a solemn meal. Usually Ito was jovial and meal time was an event to which Hatsu looked forward with eagerness.

Ito tried to look pleasant as his wife spoke, but failed, as he replied, “I fear that we are to have a terrible drought this season. It has not rained even in the mountains, and the water supply is very, very low.”

“I will go to the temple tomorrow and offer up a sacrifice to the Rain God. Perhaps he will hear my prayers and send us an abundance of rain.”

“I fear that he will not,” replied her husband; “I have been daily to the temple this week, and as yet there are no signs of rain.”

“Without rain the crops will fail?”

“Most assuredly. The rice is now in the stage where it requires a large supply of water. Unless we have rains this week or next week at the latest, we shall have no rice until next year;” and Ito sadly shook his head.

“Shall you lose so very much money if the crops fail?”

“Yes. I have been buying up all the available lands owing to the fact that I needed more to cultivate rice to supply the Maji contract. Unless it rain, I shall become a poor man, as there is a heavy bond connected with this contract.”

“A heavy bond?”

“Yes. If at the end of the season I fail to produce the required number of bags, I shall be obliged to forfeit more than two thousand yen. Besides, I mortgaged my lands when we got married. Things look very dark for us. I am afraid we shall be poor; very poor indeed.”

“I care not for the luxuries of life. The necessities with my husband, are enough for me.”

Ito kissed his wife fondly and was silent.

True to her promise, Hatsu went to the temple and offered a bowl of rice to the Rain God. Muttering a little prayer for rain, she left the temple. “It will surely rain this week,” she said; “the rice was of the best.”

But it did not rain that week, neither did it in the next. And the rice crops became a failure, and, true to his prophecy, Ito became a poor man. The change of fortune left him a small house and lot which had been formerly used by his head planter. Ito barely eked out a living by raising soy beans.

Finally, Ito called his wife and said, “We cannot live in this miserable condition any longer. I have decided to go to America and see what I can do. They tell me that America is a land wherein the poor man may become rich. Raising the soy bean is not hard. I will leave you here to tend to it. In three years or, maybe, two, I shall send for you, and together we shall live in what will resemble former days. If I fail, I shall return.”

In vain did Hatsu protest that she was just as happy now in the days of want as she had been in the days of plenty. Ito had decided to go to America, and he went.

It was a sad leave-taking, but Ito cheered his wife saying, “It is only for a few years. I shall soon be able to send money for you to come to me.”

Arriving in San Francisco, Ito found work on a railroad, digging a tunnel which the company had ordered made. He lived in a large apartment house

which the company furnished its working men—all Japanese, who, like himself, had come to the promised land to make their fortunes.

Accustomed to low wages in their own country, they live accordingly. Coming to America, with its higher wages, they keep their old methods of living and save money. It was not surprising, then, that at the end of two years Ito had nearly a thousand dollars in the bank. By careful investments at the end of the third he was the owner of a sum which would accredit him a rich man should he go back to Japan. Should he go back to Japan, or should he remain in America and have his wife come to him? Letters had been but few between them, as Hatsu could neither read nor write. When he “turned in” at night, the last question which flashed through his brain was, “Shall I go back to Japan?” and the first question which greeted him on his awakening was, “Shall I send for my wife?”

When he had decided finally to do the former, go back to Japan, his foreman came to him and said: “Ito, my boss section man sick; go back to Japan. I give you the job; raise you five dollars.”

After hearing this he resolved to stay, and wrote a letter to his wife that night, telling her to come to him. He would mail her a bank note in the morning. Then they would be together, and the old times and scenes would be reacted.

Bright and early did he rise the next morning, for he had important work to do. As he walked to the bank where he had his savings, a countrywoman of his passed, and, bowing, asked to be directed to a certain street. Ito directed her. Long did he gaze after her, and not until a policeman had told him to “move on” did he leave the spot.

“What a beautiful woman,” he muttered. By the way which the young woman arranged her hair Ito knew that she was unmarried. A wild thought flashed through his brain; why not try to get this young woman for his wife? He had forgotten the faithful and patient Hatsu, forgotten the little baby which he had never seen, forgotten everything connected with his past life, save that he had fallen in love with this beauty. So the money remained in the bank, and the letter was destroyed.

By degrees Ito became acquainted with the beauty. Soon, from a mere acquaintance, a warm friendship sprang up between the two, and finally this friendship ripened into love, and one day Ito announced to his comrades that he was to be married. They congratulated him warmly when they saw his wife, and Ito thought himself a fortunate man.

“It is strange, my pet,” said Hatsu one morning, “it is strange that your father has not written to us. It has been nearly two years since we last heard from him. He said that three years at the most would be enough to earn money to send for us. And now it is nearly five. I wonder if—no, I will not think such a thing of the most noble Ito.”

But she did think, and the more she thought the more she became convinced.

At last she could bear the suspense no longer; she would go to America and seek her husband. So, selling the little house to enable her to get passage money, all she brought from the old home was Ito’s few but precious letters.

Eventually she, too, arrived at San Francisco, but was refused admission.

“But my husband is here,” she told the interpreter.

“If that is the case,” the official replied, “you may come in, but first you will have to have your husband come to the station to prove that you are his wife.”

By some mere chance Ito was passing the Immigration Station. “There he is now,” cried Hatsu, and she rushed forward to greet her husband.

Ito was called inside and was asked, “Who is this woman?”

Ito looked and saw Hatsu trembling with suppressed emotion. Surely, oh surely, he would say the word that would cease all troubles and end all separation.

For an instant Ito paled. Like a flash there came before him the view of a woman toiling patiently among the soy vines, waiting daily for a letter

telling her to come to America.

He had been in the States long enough to know that Uncle Sam laid a heavy hand on people who had offended in the way that he had, so he answered, "I do not know her."

With a cry of anguish, Hatsu sprang forward. "Ito," she cried. But Ito was deaf.

"Are you sure that you do not know this woman?" asked one of the officials. He had seen many shams, but this looked to him to be the real thing.

"My wife live with me on Fillmore street," was the answer.

"Yes," said a bystander, "I sabe her. Her number one pretty woman. Ito too much lucky."

Ito left the room, but the officials were far from satisfied.

"I believe that he is this woman's husband," said one of the commissioners who was present.

"So do I," was the interpreter's response.

"Tell her that I am taking a special interest in her case. Ask her if she can prove that he is her husband."

Taking from her finger a small circlet of gold, she said: "This ring was his great grandmother's. There is none like it anywhere. When he sees it, watch his face. That in itself will be sufficient proof."

The interpreter took the ring, and the next morning Ito received a warrant, ordering his appearance in court immediately.

The prosecuting attorney handed him a ring, saying: "Have you ever seen anything like this before?"

Ito took the ring and sank sobbing into a chair.

"I gave it to Hatsu the day we were married in Japan," he confessed. He was sentenced on his own evidence and was led away to jail.

Poor Hatsu was broken-hearted. She dearly loved Ito, and to think that he had played her false was more than she could believe.

“Take me back to Dai Nippon,” she said; “take me back. I go to die in the land of my fathers.”

THE NEW MAGNETIC HEALER

THE NEW MAGNETIC HEALER

T

HE town had been literally flooded that year with quacks and fakers in the shape of men who either claimed to be able to cure disease in any form, or professed to have some scheme by which men and women could get rich in two weeks. It always happened, however, that all those who fell victims to the wiles of the last-named gentlemen, were poorer, when the time expired, by a few, and sometimes a good many, dollars.

Bollinger, however, eclipsed them all, both in his remunerations and in his methods. He came towards the close of the year, and when he went away, he had enraged the people so, that they shut the city's gates to all magnetic healers who tried in the future to locate in that town.

Almost all of his class wore long, flowing gowns and beards; but not so with Bollinger. He wore a suit of the latest style and cut, and was clean-shaven. Before he had been in the town three days all the girls had fallen in love with him. But Bollinger was an extremely modest young man who had no intention of falling in love with any of the enamored young ladies—at least not during the first week.

Miss Camilla Knight was away when Bollinger arrived in the town, and did not return until he had been there nearly a week. It was when she returned that Bollinger discovered that being single had its disadvantages. He made enquiries, and found out that Camilla lived alone with her father, who, besides being a widower, was a rough and austere man; one who would brook no insult, intentional or otherwise, and woe betide the man who dared to insult Papa Knight by asking him for his daughter. There were many young men in the town who could show you the exact spot that they landed upon after having been kicked off the veranda of the Knight home, simply because they had had the audacity to ask for Camilla's hand, and, incidentally, the rest of her.

Camilla had come home ill, and the doctors had given up hope of saving her life. When Bollinger heard this he hung up a sign which read, "Doctor

John Bollinger, Magnetic Healer.” The town smiled. So this young man who had been the cause of so much speculation as to what his business was, had proven to be a mere magnetic healer. With one accord they resolved not to patronize him. Camilla’s father saw “Dr.” Bollinger’s advertisement in one of the town papers, and also an editorial in another, urging the people not to go to him. He showed the paper to Camilla, who urged her father to try him.

“He can’t do any harm, and he may do some good,” soliloquized Papa Knight; “and I’ll be hanged if I’ll not do anything because an old editor tells me not to.” So he sent for Bollinger.

Mr. Knight was a little old-fashioned, and his ideas of magnetic healers were somewhat behind the time. It was no wonder, therefore, that he was surprised when an up-to-date young man handed him a card which read, “John Bollinger, Magnetic Healer.”

“Be you the doctor?” he asked, in surprise.

“I be,” the other replied, with assumed gravity.

“Humph! You don’t look like you had enough magnetic power to cure a fly.”

“Nevertheless I have enough to heal your daughter.”

“How did you know that it was my daughter who was ill?” the astonished father asked. “You have only just arrived, haven’t you?”

“I found out it was your daughter who was ill, by my magnetic power,” Bollinger answered, evading the last question.

“If that don’t beat all!” ejaculated the old man.

“Allow me to see your daughter,” asked the healer.

The old man led the way to Camilla’s room and said to his daughter, “Here’s that young healer you were so anxious to have come and see you.” He asked her a few simple questions as to where she felt the pain, and the like, and was told that the pain was in her heart. Taking a small pad from his pocket he turned to the old man and said, “Do you read?”

“Printing, but not writing,” was the answer.

“Does your daughter read?”

“Of course she does; do you think you are the only one who has had an education? Why don’t you make use of your magnetic power and quit asking so many questions?”

Bollinger did not answer *his* question, but continued to write on the pad. Tearing off the sheet, he handed it to Camilla and said, “Read this to yourself twenty times an hour. But remember! yourself. If you read it aloud, the spell will be broken and I shall be unable to do anything for you. I will come tomorrow and see if you are any better. Good morning.” And he picked up his hat and left the room. Papa Knight followed him to the front door and said, “How much do I owe you for today’s work?”

“I prefer to collect my fee all at once,” the doctor replied.

“How much will that be?”

“It is impossible for me to tell at present. If the cure fails, I do not want a cent; if it works—but we will talk of the pay later.”

“Queer fellow that,” said the old man to himself as the healer left the house. “He’s different from all the other magnetic healers I’ve heard of before. Most of them want their money before they begin to work, but this one wants to cure before he gets his pay.”

Meanwhile Camilla was reading her cure not twenty times an hour, but sixty: “Dear Camilla, I love you. Won’t you be mine? Answer me when I come tomorrow,” she read, and she did not wait to say “Yes” the first time to Bollinger himself, but said “Yes” every time she read it.

Dr. Bollinger went to visit his patient very early the next morning to see how the “cure” had worked. Papa Knight met him at the door, his face all aglow with smiles. “By George!” he said, “but you are a wonder. Why! Camilla is as pert as a cricket this morning. She wanted to get up and dress, but I wouldn’t let her. I was afraid it might harm her.”

“Why didn’t you? It would not have done her any harm.”

“I’ll tell her now, if you want me to.”

“Never mind. I am anxious to complete the cure. It is just begun. Let us go to Cam—to Miss Knight.”

They went to the room and the first question Bollinger asked was, "If anyone was to ask you if the cure was a success, what would you say?"

"I would say, 'Yes'," she replied.

"And do you say 'Yes' to the question the cure asked?"

"Yes," was the response.

Bollinger must have forgotten where he was, and who was present with him, for he lifted Camilla from her bed, and kissed her again and again.

"See here, young man," said Papa Knight when he had recovered from his astonishment. "What in thunder do you mean?"

"This is a part of the cure," Bollinger answered, "and you must not interrupt."

"Take those kinds of cures somewhere else, you rascal; I don't want any of them."

"Neither do I want to give any of them to you," Bollinger answered.

"Git out of my house!" roared the old man. "Git!"

"Before I go, allow me to tell you something which will no doubt surprise you. I love your daughter; she, in turn, loves me. Have we your permission to get married?"

Force of habit is strong, and, for answer, Papa Knight opened the door leading to the veranda, and prepared to treat Bollinger as he had treated many others who had asked him a similar question. But Bollinger was too quick for him. He caught the old man up as if he were a child, and placed him upon a chair.

"I'm determined to have your daughter, Mr. Knight, cost what it may. Will you give her to me, or shall I have to take recourse to my magnetic power to get what I want?"

"Do you want to go with this young upstart, Camilla?" her father asked.

"He is not an upstart," she said, stoutly.

"Don't contradict! Answer my question: Do you want to go with this young fellow?"

“Yes.”

“Then go; I wash my hands clean of you. Git!” he shouted.

And they “got.”

“Bollinger,” said a young man to the magnetic healer-of-a-day as they were seated in the former’s comfortable rooms in a hotel, “I heard today that you at one time practiced magnetic healing. Is that true?”

Bollinger glanced at his wife and both broke out into peals of laughter. When they finally calmed down, Bollinger asked, “And did your informer tell you who my first patient was?”

“Your wife,” was the laconic answer. Mr. and Mrs. Bollinger laughed again.

“I think you might tell me what the joke is,” the young man said.

“Well,” began Bollinger, “I was spending my vacation in Logansport one summer, where I met Mrs. Bollinger. She had come to see an aunt who lived near my hotel, and we saw a good deal of each other. By dint of many enquiries, I found out that her father was a tough customer, so I laid my plans accordingly. You see, I had fallen in love with the fair Camilla, and I could not rest until she was mine. Upon reaching home, Miss Knight was to pretend that she was ill. I was to bribe the old country doctor to declare that Camilla was beyond all hope of recovery. Then I was to step in, and, with my magnetic power, cure her, and, out of sheer gratitude, Papa Knight would give her to me. But when I did cure his daughter’s malady, like old Pharaoh, he hardened his heart, and instead of giving me his daughter he wanted to give me a kick. I threatened him with my magnetic power, and he finally gave her to me. There’s the story of the time when I practiced magnetic healing. Are you satisfied?” and, looking at Mrs. Bollinger, he burst into another roar of laughter, but this time his guest joined him, for he was thinking that the little ruse would bear repeating.

**IN THE VALLEY OF
TEETH**

IN THE VALLEY OF TEETH

“**B**y Jove, I’ve an idea!” Doctor Rothwell brought down his tilted chair with a resounding whack.

“An idea?” said Rodger Wilbur, throwing down the paper which he was reading, “really, let’s have it.”

“I was reading an account in a paper Frank sent me from Honolulu of a battle which took place there a number of years ago. They celebrated the anniversary or did something the other day worthy of the account occupying preferred position on the front page.”

“Well, what’s so interesting in that? Lots of celebrations here in New York have the report of their doings on the front page.”

“The account went on to say,” continued Rothwell, ignoring his friend’s remark, “of how a large number of men were sent to their death by some chief driving them over a huge precipice. That was a pretty long time ago; now the plain is covered with the skeletons of the warriors and it is visited by the Hawaiians occasionally, who have a secret trail to the place.”

Rothwell paused for breath and Wilbur languidly remarked, “Anything more connected with this idea of yours?”

“Rodger Wilbur, you are a man who does not deserve the luck which Dame Fortune is laying at your door. You don’t deserve to hear anything about a plan that will pull more in a day than your measly law gives you in a month.”

“Come Rothwell, don’t get angry. Explain yourself a bit.”

“Well, my plan is this; let us go to Honolulu, get the teeth in that valley, bring them back to New York, and sell them as artificial teeth. We’ll open up a wholesale “false tooth” shop and, my boy, our fortunes are made. The expense will be practically nothing as we were both planning to spend the

summer in London. The cost of living there would be more than we would spend in Honolulu. What do you say?"

"Let's go; and I say old chap, just sort of forgive me for showing a lack of interest in your plan at the beginning, will you?"

"I will this time, but I don't promise to always. This is not the only occasion in which you have showed a lack of appreciation for the schemes of my fertile brain. But when shall we start?"

"Tomorrow."

The trip was uneventful and when the *Priscilla* landed at Honolulu, she had on board two very impatient passengers in the shape of Dr. Rothwell and Rodger Wilbur. That very day they hired a hack and rode out to the *pali*, where they saw for themselves the plain of which they had read.

"Any way to get down there?" Rothwell asked to the driver, on their way homeward.

"Sure; want to go?"

"Yes."

"Alright, I'll find you a man that will take you there. I'll come to your hotel, say at nine, and he'll be waiting up there for us."

The enterprising tourists were ready promptly the next morning and were taken in tow by the Hawaiian guide. They noted the landmarks carefully for their plans were to make many visits to this El Dorado.

As he started to turn back for home, Rothwell slipped on a skull which was hidden in the grass and by some freak of pressure, the strong man's leg snapped like a pipe stem.

"Here's a pretty how-do-you-do," said Wilbur, "how on earth are we to get you home?"

"No *pilikia*," said the guide, "my house near. I take care of him till him get better. My *kekei wahine* she *akamai* fix sick people. One week—*pau*! No *pilikia*."

“That’s the only thing we can do I guess,” said Wilbur. “If his daughter is anywhere as pretty as that flower girl we saw yesterday on the wharf, you have no kick coming. Besides I’ll be here every day gathering those teeth. Say, did you notice what a lot of them there are here?”

“More than even I dared hope. Our fortunes are made.”

Between them, the Hawaiian and Wilbur managed to carry Rothwell so that the motion caused but little pain to the wounded leg, and they soon arrived at the grass hut in which the guide and his daughter lived.

The father spoke a few words to his daughter who came out to greet them, and she turned into the hut. They followed her and found her busy preparing a bed of fresh grass over which she had laid a sheet of *tapa*. They place Rothwell on his new bed and Violetta deftly treated the wounded member.

“I think better we go now,” said the Hawaiian to Wilbur, “unless you like *moi moi* in my house.”

“I thank you, but I’ve an engagement for tonight or I would. Good night, Rothwell. After seeing your pretty nurse, I almost wish that it was my leg and not yours that is out of commission.”

The sudden pain which darted through Rothwell’s leg caused him to smile grimly at his friend’s wish, but he bade him good night without another word.

When Wilbur went to see him the next morning Rothwell said, “Wilbur, you’d better quit coming here until I get better.”

“And why?”

“Because people might want to see me and might be tempted to stroll toward yonder plain. I never credited myself with possessing the only enterprising brain in the world, and some of our Honolulu friends might think of the scheme themselves if they saw those teeth lying around. So you had better visit somebody in town for a while.”

“Just as you say. But how are these Hawaiians treating you?”

“As if I were Kamehameha himself.”

“Grub good?”

“A sick man is not particular and seldom wants much grub. They’ve got a sticky substance they call *poi*, which they use in place of bread that’s great. Try some,” and Rothwell pushed over toward Wilbur a highly polished calabash containing a greyish substance.

“Got a spoon handy?” that worthy asked.

“Spoon? you’re a green one for sure. *Poi*, my dear sir, is eaten this way,” and Rothwell stuck two fingers into the calabash, gave a quick twist and placed what adhered to them into his mouth and made a grimace of delight. “*Ono*,” he said.

“Oh, no, indeed! Thank you; nothing of that sort for me,” and nothing could induce Wilbur to taste *poi*.

He soon left, and Violetta, who had seen Wilbur’s expression of disgust while Rothwell was initiating him into the mysteries of *poi*-eating, laughed softly. “Your friend is very particular,” she said.

“Very.”

“Why did you come to Hawaii?”

“Well,—er—for business.”

“You want to buy a sugar plantation?”

“No, I am a dentist and my friend is a lawyer.”

“What is a dentist?”

“A man who tends to your teeth.”

“There are plenty of teeth out on the plain.”

“Yes, that is what my friend and I are here for; to take those teeth back to New York where we came from, and sell them to the other dentists.”

“You must not take those teeth away.” The black eyes flashed. “That plain is sacred; you must not touch anything there.”

“But think of the money there is in this proposition.”

“The teeth must always remain here,” she said firmly as she left the room.

“Here’s a rum go,” said Rothwell. “I hadn’t figured on the Hawaiians caring.”

Nothing more was said on the subject until Rothwell was able to walk about. Wilbur came up to see him and plans were made to carry off as large an amount of teeth as was possible.

“Say, Wilbur, these Hawaiians object to us taking the teeth.”

“They do?”

“Yes, and quite strenuously. However, we’ll take our chances.” They left the hut and started in the direction of the plain.

The old Hawaiian saw them and knew what they were after. His daughter had told him of the plans and, like her, he objected to having them put to the use which the two strangers planned.

“They shall not do it!” he exclaimed, “they shall not take away the teeth of those brave men.” He followed Rothwell and Wilbur and appeared among them as they were filling their bags with teeth.

“Up higher,” he said, pointing to a smaller precipice, “was where the men of Maui fell. They were noted for their beautiful teeth. My daughter tells me that the haoles are making a collection of teeth. They must not fail to secure at least a few of these to take back home.”

Unsuspecting in the slightest the two men followed. They climbed the high precipice, their guide in advance. Wilbur followed with Rothwell close after them. As they neared the top the guide held on to a little bush which grew near by and suddenly kicked backwards. The force of the blow was sufficient to throw Wilbur off his balance, and he fell against Rothwell. Clutching vainly in the air, both men went tumbling down the precipice, and fell on the plain beneath, mangled beyond recognition.

The old Hawaiian gazed in silence at what had been two men, then he muttered softly, “The valley is safe.” He slowly climbed down the height and went back to his hut. Violetta met him at the door, a look of enquiry on her face.

The guide said nothing for a moment, then he repeated, “The valley is safe.”

THE RAID AT PUNCHBOWL

THE RAID AT PUNCHBOWL

T

HERE were ten grocery stores within a radius of half a mile from where Manuel Jacinto lived, and all catered to the Portuguese trade. Not enough people lived around there to keep more than two grocery stores in comfortable circumstances, yet the owners of the eight others managed to pay their bills, their yearly license fees, and to put money in the bank.

And Manuel Jacinto was thinking of adding another store to the long string. Others made money so why couldn't he? The same way by which the others managed to subsist would put him on the road to being a rich man provided he was careful and escaped being *apanhado*, as the term was for those upon whom the heavy hand of the law descended.

He was telling his friend José all this one bright Sunday morning as they quietly sipped their Madeira which Manuel had brought from the old country with him on the *Suveric* when he, and over a thousand of his compatriots, decided to cast their lot in the Paradise of the Pacific.

"But why do you have to fear the law?" José asked, "What law can you be breaking by keeping a grocery store?"

Manuel laughed. "When you have been here as long as I have," he said, "you'll understand that the laws here are a bit different from those in old Villa Nova. How do you suppose that ten grocery stores exist in such close proximity? Hardly any of them sell enough groceries to pay the rent. 'Tis the little back room, my friend, the little back room which makes us want to start more stores."

"The little back room? What do you mean?"

José was a recent arrival and had as yet not become acquainted with the ins and outs of a Portuguese grocery store.

"All these stores have a little back room where men may come together for a good time," replied Manuel with the superiority born of a year's stay

in Honolulu. “The store keepers want to make money (and who does not?) so they put in a barrel of wine in one corner of this little back room, and a table in another. They propose that a game be played and that the loser treat the crowd to wine. With a chance to get a number of glasses of *vinho* for nothing the men begin to play and the store keepers make money, for some one always loses. And there is money in this business for me. The other stores add a little water to their wine to increase the profits. I shall sell only pure wine. You know that I brought a large number of casks of the best with me when I came. My place will be eagerly sought after and, provided the law does not interfere, I shall be rich.”

José nodded in acquiescence. There was much to learn that was different in Honolulu.

Shortly after his talk with José, Manuel opened up a store and as a special inducement, he offered a glass of three-year-old Madeira to all visitors on his opening day. It was not long before card games were in progress at Manuel’s and the attendance daily increased. His wine was purer, it was older, and it was stronger than the kind the other stores supplied. The players got drunk faster at Manuel’s than they did elsewhere, and more than one fight was fought in that little back room. Finally a man was seriously injured in one of these fights and then the police began to sit up and take notice.

“We’ll raid that place tomorrow night,” said the Sheriff to a friend who brought him news of the latest escapade for which the wine in Manuel’s place was responsible.

“By the way,” asked the friend, “how do you raid?”

“Easy. We send in a man with a marked coin to purchase a drink. We usually have him buy a bottle of wine which he brings out to us. Then we go in and arrest the store keeper. We nab the cash drawer, get the marked coin and bring it to court with the bottle for testimony. It’s easy to convict in this way.”

João Pinto, known to the rest of the force as “Long John,” overheard this conversation. Long John was in love with Maria, and Maria was Manuel’s daughter. Supposing that her father should send Maria to sell the wine on the morrow? He loved her, but his duty would compel him to arrest her just

the same. If he did though, he would have to give up all hope of marrying her. If Maria was not selling wine at the time of the raid, her father would, and that was almost the same, for Maria fairly worshiped her father, and, were he arrested, she would never forgive the *policia* who had a hand in the affair. Ah! he had a plan. He would drop a note to Maria hinting at the proposed raid on the morrow. He would plead sick the next day and so escape being sent out. John chuckled at the plan. Writing the note he dispatched it by a small boy who lived near Manuel's store. He went back to the office and met the chief, who said: "John, that new store on Punchbowl is raising hell with the Portuguese. We'll raid that place tonight."

"Tonight?" burst involuntarily from John's lips.

"Yes, tonight. Things are worse than I thought. We can't put it off for another day. Here's the marked coin. Go in and have a game of cards; lose; treat the crowd. We'll be there about seven. So long." And the chief went out to dinner.

Tonight! and he had told Manuel in his letter to have a good time that evening as on the morrow the store would have to be quiet.

But it would soon be seven and his duty had to be performed even at the cost of Maria.

He entered the store and was greeted heartily by Manuel who took him aside and whispered, "Thanks for the warning. I'll give my consent for any day which you may choose to marry Maria."

John nodded mechanically as he turned to go to the card table. "Let's have a game of cards," he said. "The loser pays, of course."

All turned their attention to the game. The well thumbed pack was brought out and given to John to cut. The game progressed merrily enough for the others, but John was silent. Finally he lost the game.

"Wine all around," he muttered hoarsely.

"Here, Maria," shouted her father to the daughter in the store proper, "come and give these gentlemen some wine." They drank the wine and John flung the marked coin on the counter and started for the door.

Oh, this raiding business was awful!

But before he had reached the door he heard Manuel shout to his daughter, “*Ajoga o dinheiro.*” (Throw away the money.) “The police are upon us!”

Maria had the coin, which John had paid, in her hand. Just outside the little back room was a pit covered with boards over which her father’s horse and wagon were washed. Maria ran out quickly, dropped the coin between the cracks, and heard the splash which it made as it touched the water.

She returned and saw an officer examining the cash drawer for the marked coin.

“*Eu digo a verdade,*” her father said, “Me no sell wine; me give mans.”

“You’re a liar,” said the officer testily, for he hated to be beaten in a raid, “but just the same I’ll have to let you go this time. Look out for us, however.” And the police left the store amid the jeers and gibes of the hangers-on at Manuel’s.

“The rascal,” said Manuel to his daughter when all was quiet, “to try and catch us in a trap like that.”

“Never mind him,” said Maria with a toss of her pretty head. “I fooled him once tonight and I’ll fool him again. I just promised Antonio that I’d marry him after the *Festa do Espirito Santo.*”

A CHANGE OF OPINION

A CHANGE OF OPINION

I.



OF course it happened at the club. Things of this kind always happen at a club, either because the members feel freer to discuss the weaker sex when they are not around, or because some men think a club the only place for such speeches.

John Harris made the remark, and Walter Andrews, the pet of half the ladies in the town, was its bitterest opposer.

“I do not believe it,” he said vehemently. “You can not make me believe it.”

“Nevertheless, my boy, I repeat; no one ever saw or heard of a really beautiful woman who was good. Mark you, I’m not saying anything against the merely ‘very pretty girl.’ I’ll admit that there are some very pretty women who, in addition to their loveliness, are really good. But these are merely pretty, not beautiful,” Harris replied.

“What is your standard of ‘goodness’ in a woman, anyway?”

“Well, I’ll admit that my ideal woman would be hard to find. Even the ‘goodness’ part would be largely above par in a plain, ugly woman, let alone in a beautiful one. So I’ll take off a few requirements, and if you can find me a woman who is not a flirt even in the strictest sense of the word, and who never has been accused of trying to make a man love her, and, when she has him in that fix, declare that she only ‘likes him,’ and ‘hopes that they’ll always be friends’; if you can find such a woman, I’ll—but you can’t.”

The subject was dropped, and shortly after Andrews left the club. He went home early and to bed, but sleep did not come as it was wont to. All

night long he tossed thinking of what Harris had said, and wondering where he could find a woman who could come up to the requirements.

II.

It was a very preoccupied Andrews which entered the office of “Roberts and Andrews” the next morning, and more than once his partner asked, “What is the matter with you?”

“Nothing much,” was the invariable response.

Toward afternoon, Mr. Roberts came to him and said, “Andrews, my niece is coming here to visit us for a while. Can you suggest anything which would be nice for a young lady of twenty or twenty-one to do?”

“How’s yachting?”

“The very thing. Funny that we did not think about that. Diana is very fond of it, she writes. You have a yacht, haven’t you?”

“Yes.”

“What do you call her?”

“The yacht’s name is *Diana*,” said Andrews, digging his paper-cutter into the blotter on his desk.

“Queer name that, for a yacht. If I wasn’t positive that I had not mentioned my niece’s name to you, I would swear that you christened your boat since I began talking to you. However, I will have to go back to the house for a while, as I left Diana’s picture at home and Jones wants to make a cut of it for tomorrow’s *Leader*. I’ll be back soon and will show it to you before I take it down.”

The senior partner left the office and Andrews laughed loud and long. “Positive that he hadn’t mentioned the young lady’s name to me, was he? Oh, that reminds me that I’ll have to get the name on the yacht changed.” He reached for the ’phone and after getting into communication with the man that took care of the boat for him, he said, “Say, strike off the name and put on *Diana*.”

Andrews had barely resumed work when Harris came in. "Hello, old man," he said in response to Andrews' greeting, "I dreamed about you last night."

"The dickens you did," replied Andrews, "I dreamed about *you*."

"This is getting interesting. What did you dream?"

"I dreamed that I saw the most beautiful woman imaginable coming toward me with outstretched arms. Just as I was about to touch her she disappeared, and in her stead, I saw you. You had a hard, cynical sneer upon your face and you said to me, 'She is beautiful, but is she good?' Yes, she is beautiful, but she is not good."

"By Jove, Andrews, my dream was almost exactly like yours. What can it mean?"

Walter shook his head. "I don't know," he said; "but I wish you hadn't made such a fool statement."

Roberts came in just then, and excusing himself, Harris left the office.

Walter went over to the old man's desk and watched him as he slowly took out a large photograph from a mailing envelope. Andrews gave one glance at it, then with a shriek he flung the picture to the floor and sank into a chair pale as a sheet. Mr. Roberts looked at him in blank amazement.

"I am not feeling well," he explained as he picked up his hat to go home.

The picture which his partner had shown him was a duplicate of the face he had seen in his dreams, and which, without doubt, was the same which his friend had seen.

III.

The train to Mulford slowed down at the station of the little seaport town and from one of the parlor cars a young woman stepped out to the platform.

"She was beautiful." There was no denying the fact. Even the most unemotional man would have stared long and hard at the retreating figure once he caught sight of her face.

Anthony Roberts stepped out from the interior of the station and kissed his niece impulsively.

“Now then, Harris,” said a voice at his ear, “dare you say that that beautiful woman is not good?”

Harris turned and saw a young member of the club who had been present when his challenge had been made. “Hello, George, what woman do you mean?”

“The one walking with old man Roberts.”

Harris looked in the direction which his friend pointed, then gripped his arm convulsively.

“What the mischief are you gripping me that way for? If all women affect you this way no wonder you say that no beautiful woman is good. But, man, you are pale as a ghost. Are you ill?”

“I am not well. Let’s go to the club.”

When they reached their destination, Harris sought a secluded corner. “Has she come to follow me up and torment me again?” he thought. “Poor Walter, if he sees her he’ll try to prove that although she is beautiful, this —” he swallowed hard—“is a good woman. By God! I’ll let him alone, let him get severely punished and see if he won’t change his mind a bit. They said that I was to marry her.” Silently one by one there came to him scenes of what had seemed like a year in heaven, and following them, came what he had thought a miniature Hell on earth.

As if from the throat of some unseen person there came the word, “I can’t marry you John, let us just be friends.”

“I hate you,” he shouted at the top of his voice.

A waiter ran up to the room. “Did you call, sir?”

“Yes, bring me a whiskey.”

Tossing the glass off at one gulp, Harris left the room.

IV.

As Walter was about to open the door to his private office the sound of girlish laughter floated over the open transom.

“It must be Diana,” he said. Opening the door he stepped into his office.

“Good morning, Andrews,” said his partner, “allow me.” He took Andrews’ arm and led him up to the sofa where the young lady of his dreams was seated.

Andrews bowed his acknowledgment of the introduction. He could not trust himself to speak. The room was swimming about him and he seemed to be enveloped in a hazy mist, out of which a woman’s voice was saying, “I made bold, Mr. Andrews, to come in and arrange your office; freshen it up a bit, you understand.”

Andrews pulled himself together and looked about him. The usual staid office was transformed into a flower garden. Flowers were banked upon each other in a way which bespoke a practised hand.

Roberts and his niece left Andrews’ office and went to the firm’s waiting rooms.

“What is the matter with your partner?” Diana asked, “he has such a far away look in his eyes and he seems to be miles away from the office.”

“Only lately, my dear, only lately. I believe you have had some thing to do with it.”

“I, Uncle?” Diana gasped in astonishment, “what do you mean? I never saw him before.”

“Until I showed him your photograph, Andrews was all that one could ask, but when he saw your picture, he dropped it as suddenly as if he were holding a hot coal, gave a shriek, and skipped out of the office. I had intended to ask him what made him act the way he did, but it passed my mind.”

“I am going to ask him myself.” And Diana started for Andrew’s office.

“Diana,” called her uncle. But that young lady kept on until she had reached Andrews’ room. She knocked twice and receiving no answer, opened the door and walked in. She found Andrews with his head down upon his arms on his desk. Gently touching him on the shoulder she said, “Mr. Andrews!”

Walter started up suddenly. “I beg pardon,” he stammered, “but I did not sleep at all well last night and now I was almost gone. Can I, and may I, be of any assistance to you?” His old manner had returned and he was now the Walter Andrews which his partner had known all his life.

Diana was astonished at the sudden transition which had taken place and it was her turn to be at a loss for something to say.

“Uncle said you had a yacht,” she finally began.

“Yes,” he replied, “will you be ready to go out with me this afternoon?”

“I should be delighted to go.”

They were silent for a moment, then Diana said, “Mr. Andrews, I heard that when you saw my picture you dropped it and gave a scream of terror. May I ask why?”

Andrews dropped back into the manner which Diana had first seen him. In a strained tone of voice he said, “Miss Langdon, someday, but not now, I hope to be able to tell you the reason for my astonishing behavior.”

““Some day, but not now,”” she quoted; “When will that be?”

“When I have known you better,” he said bluntly. “When may I call for you?”

“I have changed my mind; I am not going.”

“But you promised,” reminded Andrews.

“I do not care if I did,” she returned with some heat as she rose and left the room.

““She is beautiful, but is she good?”” Andrews unconsciously murmured. “Oh, confound it, will I never forget that dream?”

V.

Towards afternoon Andrews heard a gentle knock on his door.

"Come in," he said.

Miss Langdon entered dressed in a sailor suit. "You see," she explained, "I just realized that a promise is a promise and so I've come to go yachting with you. Can you go now?"

"Can I go?" asked Andrews. "Just watch me." And giving his desk cover a pull, he reached for his hat and said, "I'm ready now."

"It took you less time to get ready than it took me," she smiled.

Andrews looked admiringly at her costume but said nothing. The distance to the pier was not long, and today Andrews found it much shorter than usual. Given, a bright vivacious girl and a man who appreciates that kind, and it needs no mathematician to prove that they will make a congenial couple.

The day was delightful. Just the right amount of wind was blowing for a sail. They talked pleasantly for some time as the big yacht skimmed over the water like a great white bird. Then Andrews said, "Miss Langdon, I have a friend who says that all women are flirts. Is he right?"

"Really Mr. Andrews, you take me at a disadvantage."

"How so?"

"Why, you ask me either to laud or condemn myself, and you know that no man can, on trial, be compelled to give testimony against himself."

Andrews laughed. "Let's change the subject. See that school of red fish?"

"Yes."

"Well, if we were in Hawaii and these fish came into the harbor we might expect to hear of the death of a member of the royal family. The Hawaiians have a superstition that these fish come to announce the death of a chief. Are you at all superstitious?"

"Well, I believe that thirteen is an unlucky number."

“Yes?”

“There were thirteen of us in our club and all but five got married before the club was a year old.”

“What kind of a club; Browning or Shakespeare?”

“Neither. We had vowed solemn vows that we would not marry until—” she stopped short.

“Why do you stop?” Andrews asked.

“You men say that women can not keep a secret. I guess that you are right. I came near giving our club secret away.”

They soon landed, and giving Diana in charge of her uncle, who was at the dock waiting for them, Andrews went to the club.

“Diana,” said her uncle, “what made you go with Andrews after you said that you would not?”

“Because,” said that young lady, “because I love—sailing.”

VI.

Andrews met Diana quite frequently during the following days. Their meeting always awoke in Andrews the question, “Will she stand the test?”

“I can stand this no longer,” he said one day; “I shall have to settle the matter at once.” He turned to his telephone and calling up Miss Langdon, asked her if she cared for a sail.

“I’ll be down directly,” she replied, and she soon appeared. They boarded the yacht in silence. Neither spoke for a while, then Andrews broke the silence saying, bluntly, “Diana, I love you; I have always loved you. Will you be my wife?”

Miss Langdon was silent for a moment, then she asked, “Why did you act the way you did when you saw my picture?”

“Your answer first,” groaned Andrews.

“I cannot give you my answer today. Come to my uncle’s tomorrow and I will answer then and there. Let’s go back.”

Knowing that it would be useless to argue with her and make her give him her answer immediately, Andrews turned the yacht and started for home.

After landing, he took her to her uncle’s and left her at the gate. She had not asked him to come in, but he had not noticed the omission.

“One who has never been accused of trying to make a man love her, and when she has him in that fix, declare that she only likes him and hopes that they will always be friends,” kept ringing in his ears. Certain it was that since she had met him Diana had tried to make him love her. Would she stand the test?

VII.

Andrews did not come to work the day after. “He ’phoned me that he would not be down until afternoon,” said Roberts, when Harris called to see his friend. “He is not feeling well. But, Harris, you have not met my niece. Come this way.” An urgent message intercepted him as they went to Andrews’ room, and hearing that his niece and Harris were old acquaintances, Harris was left to renew his friendship.

Somehow, Harris had not met the young lady since her arrival at Mulford. He avoided all parties and gatherings which he knew she was to attend and once he had gone away just as he reached the door of a friend’s house, because he caught a glimpse of her as she talked to Walter Andrews.

Harris stopped at the door. Should he go in or should he meet her and denounce her and her works? He decided on the latter and knocked at the office. A low voice bade him enter. Closing the door he turned and saw the beautiful woman reading a book. Looking her full in the face he said, “Diana.”

“John!” she exclaimed.

“Yes, it is John. Diana, have you changed your mind?” Somehow the dreadful words which he had planned to utter failed to come and instead he

realized that he loved her, and loved with his whole heart.

Diana was silent. "Then you still do not love me?" he asked.

"I really do not know," she replied softly.

Harris started for the door.

"John," she called.

He left the door and flung himself beside her chair.

"I love you," she said; "I love, love you."

It was the same old story, the telling of which has never made it grow out of fashion. He caught her up and kissed her again and again.

"Won't Andrews be glad that I am at last to settle down and marry the most beautiful woman on earth?" he asked playfully.

"I think not," she answered.

"You think not? Why?"

"Because yesterday he asked me to marry him."

"What did you tell him?"

"To call this afternoon."

"Send for him now; don't keep the poor fellow in suspense."

A messenger was dispatched and Andrews came looking haggard and wan.

"Your answer?" he asked.

"Mr. Andrews, I sent for you to tell you that I can not marry you. I love another man. Can't we just be friends?"

Andrews sank into a chair. "He was right," Andrews muttered, "Harris was right. No beautiful woman is good." Then springing up he shouted, "'Let's be friends,' did you say? Never! Henceforth my greatest enemy shall be a beautiful woman."

A FATAL EXCURSION

A FATAL EXCURSION

T

HREE is a large school in Honolulu, called the Royal School. It is so named because at one time only children of royal blood were allowed to attend it. But that is another story.

Business with the principal took me up there one day, and, while waiting for him, I sat and talked with the janitor.

The school is on a small hill and the road near it is quite steep. Trolley cars run up that road and come down with the speed of lightning.

“Whew!” I could not help exclaiming as one car in particular shot past us, “if some day an axle should break, more than one person would get hurt, and badly too.”

“You bet,” replied the janitor. There was a pause, and then he said, “Anyhow, I never ride in them cars unless I can’t help it. I hate anything with wheels.”

I smiled, sympathetically, I thought, but I suppose in his estimation it was a smile of incredulity for he hastened to say, “I used to be a locomotive fireman, but since the day that Jim got killed, I’ve had but little use for anything but my legs.”

Scenting a story, I asked, “How was that?”

He bit off a fresh bite of tobacco and then began:

“As I said before, I used to be a locomotive fireman over on Hawaii. Good job alright, but I couldn’t stand it after Jim died. Jim was my friend, and a right good fellow he was. His job was night watchman on the docks, but his health gave way and the doctor told him the best thing he could do was to go to ’Frisco.

“My run included Kohala—ever been there?”

I shook my head.

“Well, you don’t know what you have missed then. The scenery is magnificent. I had often talked with Jim concerning the place, and he was just crazy to go and see for himself. He never had a chance, though, because he used to sleep all day and work all night. But when the doctor ordered him to throw up his job, he came to me and asked me to try and get him a permit to ride on my train. We were on a freighter, and didn’t carry passengers, so I went up to the manager, and told him the circumstances. But the manager was cross that day and of course he said ‘no’; said he’d quit giving passes to people. I told that to Jim and he was dreadfully disappointed; told me he wanted to see the place before he went back to the States. So I went to my engineer and asked him to take Jim as a brakeman. At first he refused, but I insisted, and while we were talking, a kanaka woman came up and said that her Joe wouldn’t be able to work that trip, as he was sick.

“I jumped up and made the engineer promise to take Jim in his stead. He said ‘yes,’ and I went to tell Jim that he might go, and to explain his duties to him. We were to leave at six o’clock Sunday morning, and I left Jim’s house early so as to let him sleep enough to get up early the next morning.

“Sunday morning came, and, by Jove! I never saw a more beautiful morning again. The birds were singing most glorious, and the sun shining through the heavy dew drops, made them look like so many diamonds.

“Before you get to Kohala, you have to come to a steep, curved incline. We always whistled for ‘brakes’ when we got there and I had explained to Jim that when we’d blow three whistles, he was to apply the brakes. He said he understood and took his seat on a brake, one of them circular kind that you turn with your hand, you know. He sat on the last box car, but there were a whole lot of flat cars back of him.

“We started off; Jim enjoying the air, and I, happy in thinking that I had been able to give the poor fellow such pleasure. By and by we came near that curve and the engineer blew the whistle for brakes. Before we started, Jim seemed to understand the signals, but now the cars were coming down that hill faster than I had ever seen them before.

“‘What’s the matter with that brakeman?’ the engineer asked me.

“‘I dunno,’ I said, ‘unless he’s fallen off.’

“‘Maybe that’s it,’ the engineer told me, ‘when we get to the bottom of this, we’d better see.’ So when we got to the foot of the hill, he stopped the engine and we walked back.

“It was at the beginning of the curve that we found Jim. Yes, he had fallen off. Poor fellow; ten flat cars had gone over him, and there was mighty little left of him. He had been cutting up some tobacco for his pipe, and we found his pipe and a plug of tobacco and his knife lying near him. I’ve got the knife at home now.

“When we got back from Kohala, I packed up and came to Honolulu. I couldn’t stand any more railroading.

“That’s why, I can’t bear cars of any sort. Do you blame me?”

I couldn’t say that I did.

Transcriber's Note:

Jargon, dialect, obsolete and alternative spellings were left unchanged. Misspelled words were corrected. Obvious printing errors, such as backwards, upside down, or partially printed letters and punctuation, were corrected. Final stops missing at the end of sentences and abbreviations were added.

“Mary” changed to “[Maria](#)”

*** END OF THE PROJECT GUTENBERG EBOOK CUPID AND THE
LAW ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.